

25STCV18418 25STCV18418

County: los-angeles

Division: Civil Law and Motion

Department: 510

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Case Number: 25STCV18418 Hearing Date: July 13, 2026 Dept: 510

No.

13 - Itria Ventures LLC v. MK Hotel Palmdale LLC, et al.

Plaintiff Itria Ventures LLC's Motion
to Enforce Settlement Agreement

Plaintiff

Itria Ventures LLC moves to enforce their settlement agreement and enter judgment against Defendants MK Hotels Palmdale LLC; MK Sky Harbor LLC; MK Hotels Brea LLC; MK Scottsdale South LLC; MDVJ, LLC; MK Mesa Hotels LLC; Mehulkumar Kantilal Ahir; and Kantilal Karsanbhai Ahir.

Defendants did not file an opposition
to the instant motion.

Entry
of Judgment

Plaintiff

shows sufficient grounds to enter judgment of \$550,184.58 against Defendants. Code of Civil Procedure section 664.6, subdivision (a) provides in relevant part, "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court... for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement."

The

parties entered a written agreement to settle the action. (Smalbach Decl., ¶ 4,

Ex. 1 ("Settlement Agreement").) The agreement requires Defendants to make weekly payments of \$9,807.69 from September 29, 2025 to December 29, 2025, and weekly payments of \$13,423.07 from January 5, 2026 until the full amount was paid. (Settlement Agreement, ¶ 1(d), (e).) Here, Defendants breached the agreement when they failed to timely cure a remaining deficit of a payment installment after it was rejected by the bank for insufficient funds. (Smalbach Decl., ¶ 8.) Since then, approximately 20 additional payment installments have been rejected by the bank, causing an arrearage to accumulate as reflected in Plaintiff's merchant accounting statement attached as Exhibit 3. (Ibid.) Defendants have not made a settlement payment since April 14, 2026. (Ibid.)

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Settlement Agreement provides that if any party breached the agreement, the Court retained jurisdiction to enforce its terms under Code of Civil Procedure section 664.6. (Settlement Agreement, ¶ 8.) Defendants defaulted under the agreement. The Court will enter judgment against them.

Attorney

Fees

Plaintiff

requests \$8,442.50 in attorney fees and \$60 in costs for bringing this motion to enforce settlement. (Richards Decl., ¶¶ 3-4.) The settlement agreement provides, "If any Party brings an action or proceeding to enforce the terms hereof, or to declare rights hereunder, the Prevailing Party (as hereinafter defined) in any such proceeding, action, or appeal thereon, shall be entitled to all reasonable attorneys' fees (in addition to all other costs and expenses incurred)." (Settlement Agreement, ¶ 9.) The Court has reviewed the time records submitted by counsel (attached as exhibit A to the Declaration of Richards) and determines that these attorney fees were reasonably incurred. The Court will award fees and costs in full.

Pre-Judgment

Interest

Plaintiff

requests \$39,795.36 in prejudgment interest. (Richards Decl., ¶ 5.) This interest is calculated at a ten percent rate starting from the date of default. (Ibid.) The Court will award this amount.

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Court will therefore enter judgment for \$550,184.58 in damages, \$39,795.36 in pre-judgment interest, and \$8,442.50 in attorney fees, and \$60 in costs, for a total of \$598,482.44.

Disposition

Plaintiff Itria Ventures LLC's motion to enforce settlement agreement is granted. The Court will modify and enter the proposed judgment Plaintiff submitted on May 8, 2026.